

1 ENGROSSED HOUSE
2 BILL NO. 3907

By: Hefner and Kelley of the
House

3 and

4 Rader of the Senate
5

6 An Act relating to vulnerable juveniles and adults;
7 defining terms; allowing the Office of Juvenile
8 Affairs, county juvenile detention centers, and the
9 Department of Human Services to hire temporary staff
members from certain agencies for a certain amount of
time; providing for codification; and providing an
effective date.

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11 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

12 SECTION 1. NEW LAW A new section of law to be codified
13 in the Oklahoma Statutes as Section 2-7-301.1 of Title 10A, unless
14 there is created a duplication in numbering, reads as follows:

15 A. As used in this section:

16 1. "Contracting organization" means an organization which
17 operates under a written agreement signed between the Office of
18 Juvenile Affairs, Oklahoma Health Care Authority, or Department of
19 Human Services and an organization that provides direct care
20 workers, rather than full-time direct hire staff, to post-
21 adjudication treatment facilities, residential care facilities
22 including intermediate care facilities for individuals with
23 intellectual disabilities (ICF-IID), daily living supports (DLS)
24 home or group homes;

1 2. "Temporary agency" means staffing agencies, part-time
2 staffing agencies, recruiting agencies, or other organizations that
3 provide employees on a temporary basis; and

4 3. "Vulnerable person" means any person under the age of
5 eighteen (18) or a person having an intellectual disability.

6 B. A group home, intermediate care facilities for individuals
7 with intellectual disabilities, daily living supports (DLS) home,
8 post-adjudication treatment facility, or any other facility holding
9 youth operated by the Office of Juvenile Affairs, Department of
10 Human Services, or contracted with the Oklahoma Health Care
11 Authority, may utilize, employ, or enter into an agreement to staff
12 facilities using organizations known as temporary agencies or
13 contracting organizations who employ full- or part-time team members
14 on behalf of the Office of Juvenile Affairs, Department of Human
15 Services, or the Oklahoma Health Care Authority on a temporary or
16 contract basis for no more than two (2) months for any single
17 position to be covered by a temporary staff member within a twelve-
18 month period and the agency utilizing the temporary staff member
19 shall be actively trying to fill the permanent position.

20 SECTION 2. NEW LAW A new section of law to be codified
21 in the Oklahoma Statutes as Section 458.1 of Title 19, unless there
22 is created a duplication in numbering, reads as follows:

23 A. As used in this section:
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1 1. "Contracting organization" means an organization which
2 operates under a written agreement signed between the Office of
3 Juvenile Affairs and an organization that provided contract workers,
4 rather than full-time direct hire staff, to post-adjudication
5 treatment facilities; and

6 2. "Temporary agency" means staffing agencies, part-time
7 staffing agencies, recruiting agencies, or other organizations that
8 provide employees on a temporary basis.

9 B. County juvenile detention centers may utilize, employ, or
10 enter into an agreement to staff detention facilities using
11 organizations known as temporary agencies or contracting
12 organizations who employ full- or part-time team members to the
13 county on a contract basis for no more than two (2) months for any
14 single position to be covered by a temporary staff member within a
15 twelve-month period and the agency utilizing the temporary staff
16 member shall be actively trying to fill the permanent position.

17 SECTION 3. NEW LAW A new section of law to be codified
18 in the Oklahoma Statutes as Section 530.9 of Title 56, unless there
19 is created a duplication in numbering, reads as follows:

20 A. As used in this section:

21 1. "Contracting organization" means an organization which
22 operates under a written agreement signed between the Office of
23 Juvenile Affairs and an organization that provided contract workers,
24

1 rather than full-time direct hire staff, to post-adjudication
2 treatment facilities; and

3 2. "Temporary agency" means staffing agencies, part-time
4 staffing agencies, recruiting agencies, or other organizations that
5 provide employees on a temporary basis.

6 B. An adult companion home certified by the Department of Human
7 Services may utilize, employ, or enter into an agreement to staff
8 facilities using organizations known as temporary agencies or
9 contracting organizations who employ full- or part-time team members
10 to the Department on a contract basis for no more than two (2)
11 months for any single position to be covered by a temporary staff
12 member within a twelve-month period and the agency utilizing the
13 temporary staff member shall be actively trying to fill the
14 permanent position.

15 SECTION 4. This act shall become effective November 1, 2026.

16 Passed the House of Representatives the 23rd day of March, 2026.

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18 _____
19 Presiding Officer of the House
20 of Representatives

21 Passed the Senate the _____ day of _____, 2026.

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23 _____
24 Presiding Officer of the Senate